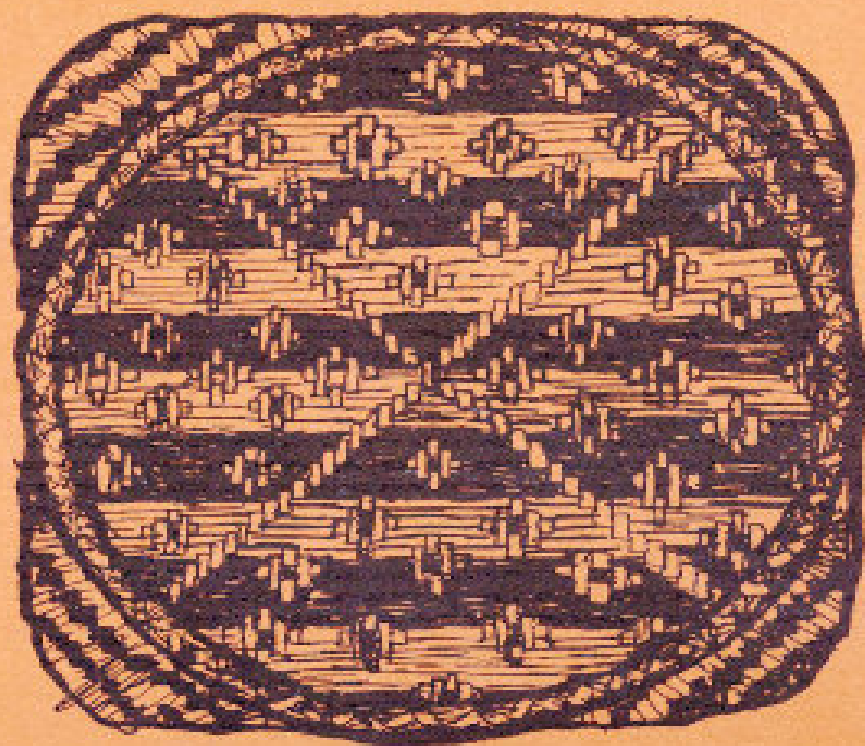


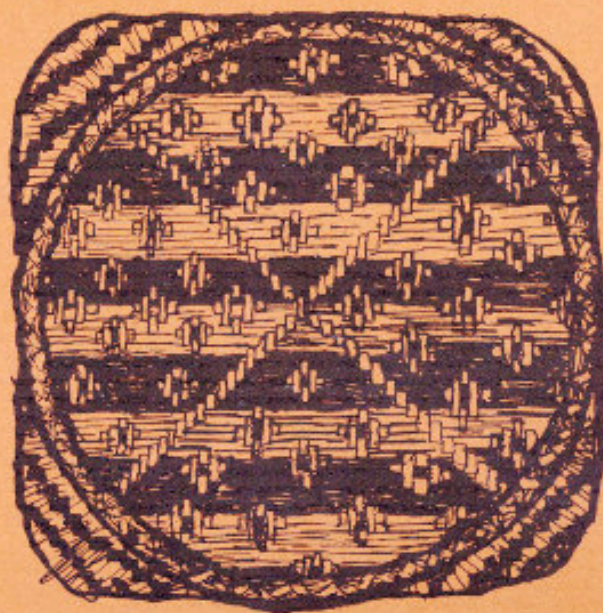
CHITIMACHA NOTEBOOK

Writings of Emile Stouff - A Chitimacha Chief



CHITIMACHA NOTEBOOK

Writings of Emile Stouff - A Chitimacha Chief



The Project Gutenberg eBook of Chitimacha Notebook: Writings of Emile Stouff—A Chitimacha Chief

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Chitimacha Notebook: Writings of Emile Stouff—A Chitimacha Chief

Author: Emile Stouff

Editor: Marcia G. Gaudet

Release date: August 1, 2020 [eBook #62803]

Most recently updated: October 18, 2024

Language: English

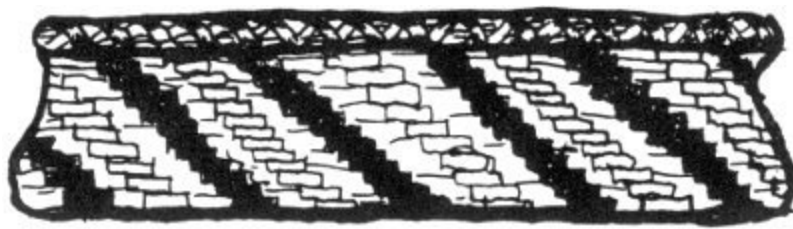
Other information and formats: www.gutenberg.org/ebooks/62803

Credits: Produced by Stephen Hutcheson and the Online Distributed Proofreading Team at <https://www.pgdp.net>

*** START OF THE PROJECT GUTENBERG EBOOK CHITIMACHA
NOTEBOOK: WRITINGS OF EMILE STOUFF—A CHITIMACHA
CHIEF ***

CHITIMACHA NOTEBOOK
Writings of Emile Stouff—A Chitimacha
Chief

Edited by Marcia Gaudet



Lafayette Natural History Museum and Planetarium
Lafayette, Louisiana
1986

the chief was very angry so he ordered
the priest killed & brought back to the French
so be it when the French woke up next
morning there was the dead priest
that's when all hell broke loose the French
hunted the Chitamacha's down and killed
every one in sight some Chitamacha
Ran and hid all over the wood's some
went what is now Weeks Island some
got to Phagurina there was about 50
Chitamacha remain on the same land
that is now the Reservation.

at that time Otiely was Governor of LA.
he issued a proclamation that the Indians
could live there as long as they remain
Peaceful and that they was on their
own and that parcel of land would
show as a body of water on the map of
LA. this map can be found in the archive
of the state capital today.

now about that time negro slaves was
brought in the South the white plantation
owners bought black slaves and began
to let the Indians go as the way got
to good at work so the free Indians
had no place to go but back to the
Indian Reserve with their half breed
French and Indian it is assume

I WILL TRY TO WRITE HERE WHAT I KNOW OF
THE CHITANACHA INDIANS AS I KNOW IT AND WHAT
I HEARD FROM THE OLD PEOPLE.

The tribe once lived on Grand Lake from
Bayou Portage as that's where the Sacred Tree
now stand to the Shell Beach here in
Cher-entoni. That where the where the was
living when one day a large boat came
up from where the Sun Rises. it stopped
out in the lake a distance from shore.
The Indians was amazed at it size and
stood on shore looking when some men
came ashore to see about coming
ashore since they did not speak the same
language they where chased back to their
ship. (they where Spanish) next day they decided
to come ashore by force. But the night before
the chief consulted the medicine man to
find out what should he do. The medicine man
took some kind of herbs and burnt them
and gathered the ashes and told the chief
if he would spread the ashes on the shore
line no one would put the foot on land
so it was done by the chief. They tried
but the warrior held them off as the chief



Emile Stouff, Chief of the Chitimachas



Chitimacha Chief Benjamin Paul and the Chitimacha children are pictured with a pirogue near the Chitimacha reservation in Charenton. The little girl is Jane Bernard Wilson, the boy in the center is Arthur Darden, and the boy sitting in the pirogue is Gabriel Darden.

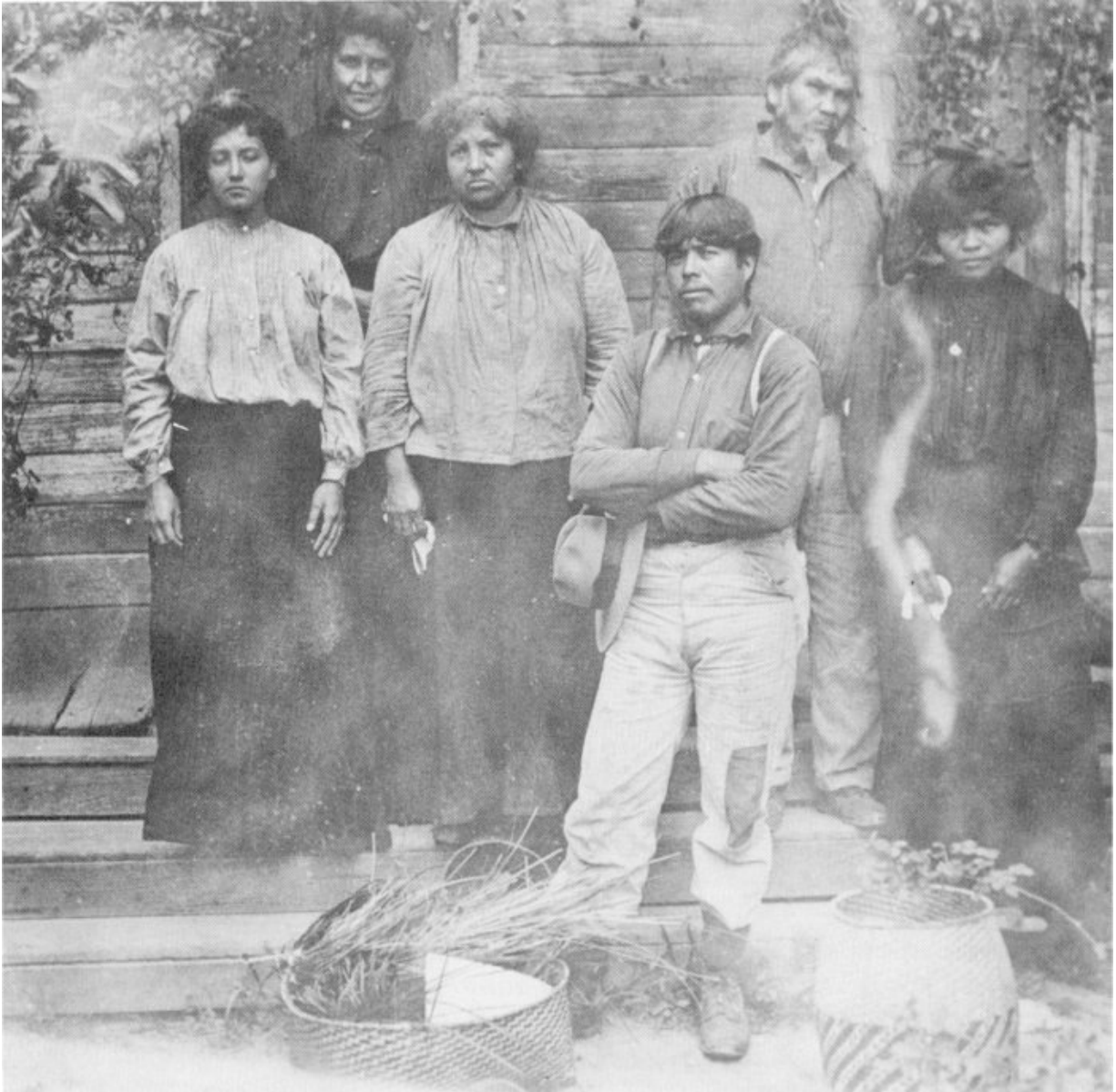
(M.R. Harrington, 1908. Photo courtesy of Museum of the American Indian, Heye Foundation)

TABLE OF CONTENTS

I. <u>Introduction</u>	3
II. <u>The Chitimacha Story of Creation</u>	5
III. <u>History of the Chitimacha Indians</u>	11
IV. <u>Previous Publications about the Chitimachas</u>	15

LIST OF PHOTOGRAPHS

- | | | |
|------|---|------------------|
| I. | <u>Chitimacha Chief Benjamin Paul with children and canoe</u> | facing
page 1 |
| II. | <u>Chitimacha family—Regis Darden</u> | 2 |
| III. | <u>Chitimacha group—1908</u> | 4 |
| IV. | <u>Three members of a Chitimacha family.</u> | 10 |



The Regis Darden Chitimacha family. Pictured from left to right are Lucy Mora Darden, Delphine Stouff (in back), Adelle Darden, Gaston Darden, Regis Darden (in back), and Stacy Darden. Adelle Darden, wife of Regis Darden, was known as “Gum DaDa.” Lucy Mora Darden was the wife of Gaston Darden. Chitimacha baskets are pictured in front of the group.

Basket weaving is a traditional craft of the Chitimacha Indians.

(M.R. Harrington, 1908. Photo courtesy of Museum of the American Indian, Heye Foundation)

INTRODUCTION

Emile Stouff was Chief of the Chitimachas of Charenton, Louisiana, from 1948 to 1968. After Chief Stouff died in 1978, his widow, Faye Roger Stouff, discovered two notebooks in which he had recorded some of the things about the Chitimachas that he had learned from oral tradition. The two manuscripts were written in Emile Stouff's handwriting. Though Chief Stouff had no formal education, Mrs. Stouff, who is not a Native American, taught him to read and write after they were married and she came to live with him on the Chitimacha land.

Mrs. Stouff said that her husband told her he had learned most of the legends, stories, and myths that he knew from an aunt who would sit him down and beat him with a cane to make him listen. She would tell him, "You've got to learn this." Learning the history, religious beliefs, legends, and traditions of the tribe was apparently a very important part of the education and development of the Chitimachas.

There are two separate notebooks with writings by Emile Stouff. One begins with the story of creation and deals with the beliefs of the Chitimachas. The other deals more with the history since the white man came. Previous publications about the Chitimachas have presented parts of the legend about the cypress tree in Lake Dauterive and the legend about the little bird of the Chitimachas. Since Chief Stouff's version of the history is from the perspective of the Chitimachas, it differs somewhat from previously published accounts. This is particularly evident in a comparison of the Chitimacha account of the murder of St. Cosme with accounts that rely on French historical sources.

Chief Stouff's notebooks give an account of the Chitimacha beliefs and history as they were passed down by oral tradition. He recognized that this tradition would perhaps not be maintained, and he attempted to record some of his knowledge of the people and their culture. As such, his writings are of value and interest to anyone who would like to know more about the Chitimachas.

In editing the notebooks, I have made as few changes as possible in order to maintain the style and tone of Chief Stouff's writing. The changes from his original manuscript have been mainly to standardize spelling and punctuation for clarity. For example, Chief Stouff spelled Chitimacha several different ways (Chetamacha, Chetimacha, Chitamacha) in his writing, and he usually used no punctuation at all. Thus, he was writing just as he would have told these stories orally to the next generation of Chitimachas.

Marcia Gaudet

4



Chitimacha Group with finished Chitimacha baskets. Pictured left to right are Delphine Darden Stouff, the child—Constance Marie Stouff (died at age 13), Clara Darden, and Octave Stouff, Sr. They are, respectively, Emile Stouff's mother, sister, great-aunt, and father.

(M.R. Harrington, 1908. Photo courtesy of Museum of the American Indian, Heye Foundation)

MANUSCRIPT OF EMILE STOUFF

Last Chief of the Chitimachas

THE STORY OF CREATION

In the beginning, the Great Spirit looked at a great mass of water. So he said, "There should be something solid for animals with blood." So he called upon the crawfish to dig down and bring up some dirt, which they did. As they brought up the dirt, the water receded. The crawfish is still working at it. The Great Spirit was pleased. So he took the dirt and made all living things with it. When he ran out of objects, he said, "This is good, but I must make one to control these animals. I will make man." So he chose some good clay and made a clay man, but it was soft. "I shall bake it in the fire from the sun," he said. So he baked it, and when he took it out, it was pale. So he just blew on it and set it aside. Then, the more he looked at it, the more he was displeased with it. So he said, "I will let it live, but I will make another one and leave it longer to darken it." He left it twice as long as before and when he took this one out, it was black. So he set it aside and said, "I shall make another," and when he baked this one he cut the time in half, and it came out exactly as he wanted it. So he made three—one white, one black, and one red. He named that one *pinikan*, meaning Red.

Then he saw man needed a helpmate. "I made man out of dirt so I will take part of man to make his helpmate so they will be as one, and she will be known as female as she is part of the male." After looking the male over, he decided to make her out of bone. So he took a rib from the rib case, right in front of the chest, leaving a bone dangling. When man woke up, he saw this female sitting there. He noticed she was built different and beautiful. When he started to her, he cried, "Wo Man," and they committed the first sin (as we know it). The man said, "You should cover yourself up." The female said, "And so should you. I know, I will take the large leaves from this tree and make each a cover." She made the covers and tied them on with a vine known today as the white vine. When they heard the Great Spirit coming, they were ashamed, and hid from him. So he called for them to "Come out wherever you are." Then the Great Spirit asked them, "Why are you hiding?" Then the male said, "She looked so enticing that I went into her without your permission." The Great Spirit said, "For that you shall go out on the earth and earn your living by the sweat of your brow. If you do not

work, you do not eat, and you, woman, you shall bear his offspring in great pain. I did not intend to have but you two, but since it is this way, you will be fruitful and multiply so your seed may be many, and now that you are smart, I will give you the earth, but remember you are made of her dirt and you shall return to her. She is your mother. She will feed you and clothe you. She will give you the trees to give you nuts and fruits for you to 6 eat and at seasons for birds to live in, and fur bearing animals. You will also enjoy its shade. When you are tired, you may rest on the soft grass that will grow. The tree will have many uses. It will be used to warm you in the winter, to make rafts to float on the waters, and it will make your homes for your protection against the cold winter. It will heat you when it is cold. It will cook your food and its fire will be a blessing as the flames leave by small parts into the skies. It will also tell you the direction you must go so you need not ever get lost while you are traveling. The seed you shall plant, the earth will help them grow so you will have something to eat. She will separate and make streams to harbor the fishes you will eat and for you to drink and bathe. So protect the waters and keep them clean. Your life depends on its purity just like the air you breathe. You may have my breath in you, and if you disobey me, I will withdraw my breath and you will be no more. And through my breath, I will be with you always. When you are sick, the earth will bear roots and herbs for you to use. I will not inflict any sickness that will not have herbs to cure. I will speak to your medicine man through a coma only and only to this man I shall designate the cures. I will speak to him only through a vision. No one else shall see me again, and this man shall choose someone of his kind and reveal this secret to any man worthy of him. To avoid conflict, there will be only one in each group to speak to me. His power strength will be as strong as his faith in me. I shall keep the mother earth in my custody so I may destroy it any time that you have lost faith in me and disobey my teaching. You will, at any time I choose for you, return your body to the mother earth, but if you love me and keep the faith your spirits will go to the Happy Hunting Ground, where everything will be for your taking, and you will die no more. But if you do not, your carcass will remain in mother womb and return to dirt of which you were created.

“The earth will be for your use. Use it in any way you choose. But no one can claim it as their own. It is not to be bought, sold, or rented, because the

earth is mine. Misuse it, and you shall repent for any wrong use of the land or its streams. This I command you to live by, so go out in the world that you have made for yourself and be fruitful and multiply.”

That is the way the Indians said the Great Spirit gave it to the first man, and it was in practice when the white man came into this country. The Great Spirit showed them how to make coverups out of animal skin, called breachcloths, and they were happy. Now the man who was to do the treating found a certain herb that would put him into a coma, so he would build a fire and drink a tea made from this herb and dance around this fire chanting until this herb took effect. Then he would pass out. While in this stage, he would communicate with the Great Spirit which would tell him what to do or what to use or whatever his desire was. Someone asked the medicine man to describe the Great Spirit since he claims he saw him. The medicine man said he would be hard to describe since he has no shape, and yet he has many shapes. “The way I saw him is like a heavy mist. He had no eyes, yet he saw everything. He has no ears, yet he hears everything, even the unspoken word within you. He has no mouth, yet he speaks. You have heard him speak to you within your head, something to not do that is wrong, or he will say do that that is good. He is watching you always. You cannot hide from his sight no matter where you are or what you are doing.”

Now the Indians had no Hell, no Devil. They thought that returning to dirt and not going to the Happy Hunting Ground was the worst thing that could happen to them. It was their code, not religion. They lived by sort of Moses’ law—an eye for an eye, a tooth for a tooth. Their chief and councilmen would decide. Now the white man says that they found them worshipping the moon or some stars. True, they knew he was up there somewhere, so some would think he was the man in the moon, and thought he was some bright star. They did not know. Nonetheless, they knew that there was a power stronger than them. They could feel him in their mind. They did not teach fear to their children like they would go to hell. They taught them bravery, to fear no one. As long as they obeyed the Great Spirit, they would be content. 7

A long time ago, no definite date, came among the Chitimacha a strange, fair complected man who spoke their language, which amazed the Indians.

He was very smart. The Indians said he knew everything. He taught them to make better crops by using fish byproducts and even fish by their plants, and it would make them grow healthy and strong. He helped them to substitute herbs when one was not available at different seasons. Then came one day, he told the Indians it was time for him to leave the Chitimacha and go do his father's work. He picked out a cypress tree and climbed to the top. Then he told the Chitimachas, "Whenever you need rain for your crops, come and wet this tree and it will rain according to your needs." And until this day, it works. It has been proven by many, many people, white and black. All over South Louisiana, people know about it and believe in it strongly. That is how the Indians were blessed by the Great Spirit. He gives and he takes. The Chitimacha did not think it feasible to ask the Great Spirit for anything. All they taught their children was how to thank him for all the good things they got from him. If something went wrong along the way, you just checked the past—you have done something to displease the Great Spirit. It has always been and still is until today. So the Indians would punish themselves to try and please the Great Spirit.

Now the Indian has been ridiculed for talking to the Great Spirit which is an Indian belief. The white prophets of old spoke to their gods. Why should it be unreasonable for an Indian to do the same under the Great Spirit? Guidance as afore stated, the Chitimacha do not believe Adam and Eve naked in the Garden of Eden ate an apple; however, the white man says so, so the Indians do not deny it, since they had to accept the white God, which is the same Supreme Being with different names. They are both sacred to the Chitimacha. Since the Indians could not read or write, all this was handed down mouth to mouth. So many things might be left out and some could have been added. We do not know for sure, yet some of your strongest and oldest organizations do not have anything written and are still going strong.

We do know that the Indians did not preach religion. They live it. They have a ceremonial for everything, and it was all done with respect to the Great Spirit. Their dances, their chanting was somewhat like your unknown tongue of today, and it was always done around a fire because we believe that fire has life. If you watch a fire, you will notice part of the flame leaves

the fire and goes up to carry the message to the Great Spirit, thanking him for a good harvest, good hunt, a good fish catch, and many other things.

The council would meet and decide what punishment should be for a wrongdoer, such as if one committed murder and they decided he should die also, the chief would tell him. So having no jail, he would be free until 8 his time came. Time was measured by the moon. The council would decide how many moons he had left. Then the criminal would return to meet his execution and if he did not return, his mother or father or brother or his son would have to pay for his crime, someone very close to him. Now in the killing of one in a brawl, the living was not punished by death. He had to see that the family of the deceased was fed and clothed until all were capable of taking care of themselves. If he had only enough for one family, he had to do without, so the dead man's family would not suffer hunger. Now if a squaw committed adultery, she was punished by cutting the tip of her nose. She would be forever marked as an unfaithful squaw. There is no punishment known today for the man.

Once an Indian had an eye sore the medicine man could not cure. So he had to go into a coma and seek the aid of the Great Spirit. After the preparation that the Great Spirit had instructed them to do, he passed out, so to speak. The Great Spirit told him where to find the herb that would cure any sore eye. It seems that the chief's little girl had died and was buried. The Great Spirit told him to go to the grave of this little girl, and he will find a small vine growing from her eye. Use that vine and leaves, and make an eye wash with it. He did and the eyes were cured (and we were still using it till we were forbidden by the medical association to use any herb), and many herbs were found, like moner, and until today only one of the tribe knows the herbs that were used since the beginning, which will not be revealed to anyone. The Indians of today do not meet the standard that the Great Spirit set, nor will they follow the ritual that goes with it, so it will die out just like the other things the white man deprived the Indians of, their way of living.

The chief duty was to see that everyone had something to eat before he would eat. If some did not have any through no fault of their own, everyone had to share what they had with the one that had none. These were the unwritten laws that the Chitimacha lived by. As far as this writer knows that

is the way it was related a long time ago. (I make no excuse for adding some or leaving some of it out. As time goes on, perhaps some more will come to mind. If so, it will be added to this brief resume of the one and only Great Spirit as the Indians knew him before the white man came.)

The Indians knew how to make rain without the rain tree and how to make the north wind blow to dry up the weather when necessary. I have seen it work time after time. It is a secret given by the Great Spirit for their use, but they were warned never to abuse it nor use it to harm your fellow men. But such rituals cannot and will not be revealed to the Indians of today. They are too well integrated with the white man and his ways. It may not work for them, so let it die out like so many rituals have. Like an old Indian chief once said, "The campfire is dying out, the hunt is almost over." But what will happen to the songs and the folklore? They will soon die out also. Everything an Indian does is done in a circle because all things are round. The moon, the stars, the sun, the sky, the world is round. So he must also do everything in a circle. The sun rises and circles overhead until it disappears and returns to do the same thing again. So does the moon. The stars do the same thing. Their homes were built in circles. Their lives were lived in a circle from birth to death to birth after death.

The extremely beautiful creation of the Chitimacha Indians is amazingly similar to the Biblical Genesis. The animal was created before man. So in this Divine Origin, they have a certain proximity to the Great Spirit 9 himself which serves the same function as revealed scriptures in other religions. There are intermediators or links between man and the Great Spirit. The Great Spirit comes to the Indian vision involving animal forms. One old Indian, the last we know of, received his spiritual power from visions of a wolf and when he died in the house where an Indian still lives, a pack of wolves came and ran around the house several times and then left never to return as far as we know. We as Indians have lost the communication with the Great Spirit. Then we still have a very small bird that lives with the Indians, and it peeps things Indians understand. It tells when someone is coming, when it is going to rain, and many other things only an Indian understands. No Indian was allowed to harm this little bird.

Indians see signs from all the wild animals—have some trait—an Indian notices them very close, thinking they are the love of the Great Spirit. Since he created them first, we regard all created beings as sacred and important for everything.

This is the way it was told to me many years ago. So be it.



Three members of a Chitimacha family. Pictured left to right are Felicia Mora Darden, Ernest Jack Darden, and Emma Darden Bernard.

(M.R. Harrington, 1908. Photo courtesy of Museum of the American Indian, Heye Foundation)

HISTORY OF THE CHITIMACHA INDIANS

I will try to write here what I know of the Chitimacha Indians as I know it and what I heard from the old people.

The tribe once lived on Grand Lake from Bayou Portage, as that is where the Sacred tree now stands, to the shell beach here in Charenton. That is where they were living when one day a large boat came up from where the sun rises. It stopped out in the lake a distance from shore. The Indians were amazed at its size and stood on shore looking when some men came ashore to see about coming ashore. Since they did not speak the same language, they were chased back to their ship. (They were Spanish.) Next day they decided to come ashore by force, but the night before the chief consulted the medicine man to find out what should he do. The medicine man took some kind of herbs and burnt them and gathered the ashes and told the chief if he would spread the ashes on the shore line, not one would put the foot on land. So it was done by the chief. They tried, but the warriors held them off as the chief stood on the shell knolls with the ashes in hand throwing bits in the air. They Spaniards were so badly defeated, they went off in their ship. The Chitimacha, thinking they had chased them off for good, forgot about them and again were enjoying life like it was.

Not too many moons later, the Spaniards came back to the Indians on Bayou de Chittamach (known now as Bayou Lafourche) and gathered the Houma Indian which they had defeated and enslaved to fight the Chitimachas. Somehow they came up Bayou Teche and attacked from that side. While they were fighting the Houma Indians, the Spaniards came and landed on the lake side, which is known now as the Shell Beach and attacked from that side. The Chitimacha did not have a chance. Thousands were killed and wounded and nothing to eat. We had to give up.

The enemy told the few remaining Chitimachas, "This is what we will give you. You may remain here on this bayou and live. No harm will come to you, but any Indian caught in the woods or lakeshore will be shot on sight."

This parcel of land we now hold is the very same place that they were talking about.

We have no record of what happened to the Houmas that survived the war. Perhaps the Spaniards took them home or they remained here and intermixed with us. I do not know.

Hunting along the Bayou Teche was not so very good, so the Indians had to eat whatever they could find such as acorns, wild fruit, and some grass was edible until they could grow some vegetables. Then life became more bearable.

Now that is the way I heard, true or not.

I do know that the Houma Indians were hated by all the old Indians as late as the twenties. Few Houma Indians came over and were not received by the old Indians with the exception of two women. I will cover them later.

After the Spaniards settled, they had their first governor by the name of Galvez. The year 1763, Galvez signed a treaty with the Chitimachas 12 for living so peaceful. He granted them 1100 acres of land on both sides of Bayou Teche.

There is no record I can find how they built the town of Charenton in the middle of the grant. The older Indians did not say what happened from then to the time when Spain sold out to France.

When the Frenchmen came over, they started to take over the land that was donated to the Chitimachas which they claimed the French had bought it all from Spain. The treaty was no more good.

Then the French started killing Indians. The Indians tried to fight back, but were no match for Frenchmen who nearly wiped out the Indians. They killed them like animals, slaughtered, murdered until a few that remained gave up. So the French took them and made slaves out of them, those able to work in the fields. The women were made servants, the young ones taken by the French as concubines. They were forced to lay with the men, as young as ten years old. There were more men than there were Indian

women, so one Indian woman would satisfy the lust of five or six Frenchmen.

Then half breeds were born to the Indian women. Some of us still have French names.

There were only about fifty Indians escaped to Plaquemine, Weeks Island, and all about. Some of them came back here and lived pretty peaceful with the French. They populated well.

By that time the Frenchmen decided that the Indian worship of the Great Spirit was wrong. They must forget their way of living and live like the Frenchmen. So they sent a missionary among the Indians to teach them their invisible God. The Indians, ready to believe anything to help their plight, believed what this man was saying. His name was St. Cosmos. He was so pleased with his work, he talked the Chief into letting him take some Indians to meet the General to show him how they had accepted the white God. So the Chief consented to let them go. He took six of the Indian braves and left. It was not known where the French army was located. Anyhow, when they got there the soldiers killed all the Indians. The priest was outdone, so to speak, so he returned to the reservation. When the Chief asked where were his men, the priest told him they were all dead, shot by the French army. The chief was so very angry, he ordered the priest killed and brought back to the French. So be it. When the French woke up the next morning, there was the dead priest. That is when all hell broke loose. The French hunted the Chitimachas down and killed everyone in sight. Some Chitimachas ran and hid all over the woods. Some went to what is now Weeks Island, some got to Plaquemine. There were about fifty Chitimachas remaining on the same land that is now the reservation.

At that time, O'Reilly was governor of Louisiana. He issued a proclamation that the Indians could live there as long as they remained peaceful and that they were on their own and that parcel of land would show as a body of water on the map of Louisiana. This map can be found in the archive of the state Capitol today.

Now about that time, Negro slaves were brought into the South. The white plantation owners brought black slaves and began to let the Indians go as

they were not too good at work. So the free Indians had no place to go but back to the Indian reserve with their half breed French and Indian. It was assumed that is how the Chitimachas got their names until today. Some of the ones that had escaped started to come back and some did not. 13 Some remained in Plaquemine where some of them still show the Indian trace. Of course, they are whites today. And that is how we of today are descendants of that bunch of Indians. There is no record of how many there were. We are a small tribe today.

Now there is not much said about the Chief. It seems like they lived without a chief until the late 1700's when one Chief, Soulier Rouge, seems like he acquired a pair of red shoes. Somehow the French started calling him Soulier Rouge. His first name was Eugene. Nothing was said about his reign. Only when he died, his squaw took over (Eugenie) and that is when the land started to disappear. She seems to be one of those Indians that lick white man's boots just to be with them. It is recorded that she sold Rose Pecot 610 acres for \$9.00 per acre and a man by the name of Alex Frere 640 acres of land. The record shows that some of the money was divided among some Indians at \$40.00. That is the way it was recorded in the Court House. The names on the record do not jive with any name of the now Chitimachas. Somebody gave her an old Mexican silver crown for a large acreage, but we cannot find out where, but we have the crown. And it is recorded that in 1817 they leased 610 acres of 99 years. That was 168 years ago. It is also recorded that land was sold the same year it was leased—which the sale is no good. Now my lawyer told me that after the lease expires it cannot be re-leased by the same party.

But we Chitimachas are a nation of people that are afraid to venture as we may make the whites mad, and we seem as we do not want that. We have the money to regain that property, but we do not trust lawyers in this vicinity as we think they would work for the white instead of the Indians, which was proven in the period of 1903 to 1910. One white lawyer named George Demerest and one civil engineer named Fusilier contacted the Indians stating that (the agreement with) Soulier Rouge and Alex Dardenne was illegal as they could not read or write, that they could gain all that land back for the Chitimachas. (I think John Paul might have been Chief then.) The Indians had no money, so it was agreed that Demerest would work for

part of the land. It would not cost the Indians one penny. So I guess the tribe, thinking that the land was lost anyhow, so whatever they got back would be okay. So it was agreed that Demerest would get 4/9 of the land for the Indians. The legal papers were drawn and signed by both parties. So Demerest took to court in Franklin. As to be expected, he lost the case. So the Indians must have been a little outdone, but they figured the case was closed. But they had signed to give George Demerest 4/9 of the land, win or lose. So Demerest took all of Georgetown.

Fusilier surveyed the land and found that it was three acres short of 4/9, so he came over and started to measure three acres on Uncle Regis' land. He was stopped by a shotgun pointing at his head and ordered to get off. So he did, and they thought that was the end of it. I can remember that incident. They would laugh when they said Regis was going to shoot Fusilier. But what they did not know was that Demerest took out a lien on the land. The Indians ignored the judgement until 1916, when Demerest foreclosed on the land, which by now included all of the Chitimacha's land. The lien was to be sold on the courthouse steps. Now Tante MiMi was Chief Ben Paul's wife. She was in cahoots with one Sarah McIlhenny at Avery Island in a basket trade. Miss Sarah would buy all the baskets the Chitimacha women would make. The basket makers gathered at Tante MiMi's and 14 decided to write to Miss Sarah and ask her help. Being a very rich woman, they were sure that she would help. She did not say she would or would not. She sent her lawyer to Franklin to pay off the mortgage, and there was no sale. The land belonged to Avery Island. Miss Sarah then made arrangements with Chief Ben Paul to rent the land to some farmers and pay her back, as she did not want the land. She only wanted her money back. So this was done. The chief let some Negro farmers work on share as they had no money to pay rental. Come harvest time, the Chief had a barn full of corn and sweet potatoes and no market. The stuff just stayed there and rotted. He sold some. Up to 1918, he had sold and paid back \$600.00, more or less.

In the meantime, McIlhenny lawyers were checking the title of the property and found that the sale was illegal as some of the people had title to the land, and the best thing for her to do was to petition the B.I.A. (Bureau of Indian Affairs) to pay her back and take the land in trust for the Indians. The

B.I.A. hired a lawyer in Franklin named C.J. Boatner to transact the deal in which he had all the Indians sign the land over to the government, except some were not available at the time. What the ignorant Indians did not know was that this property was not a reserve any more. They were giving title to the land, and were paying taxes on their property. The then Chief who made the deal with Demerest did not have the authority to sign any deal with anyone. So the government took over some private land which is not lawful. This statement is recorded in the courthouse and can be made available anytime. These records are not in Franklin, as Franklin is twenty miles from here.

PREVIOUS PUBLICATIONS ABOUT THE CHITIMACHAS

Hoover, Herbert T. *The Chitimacha People*. Phoenix: Indian Tribal Series, 1975.

Kniffen, Fred. *The Indians of Louisiana*. Baton Rouge: Louisiana Bureau of Educational Materials, Statistics and Research, College of Education, Louisiana State University, 1965.

Orso, Ethelyn and E. Charles Plaisance. "Chitimacha Folklore," *Louisiana Folklore Miscellany*, vol. III, no. 4 (1975 for 1973), pp. 35-41.

Stouff, Faye. *The Chetimachas of Charenton*. Booklet published by Lafayette Natural History Museum, 1974.

Stouff, Faye and W. Bradley Twitty. *Sacred Chitimacha Indian Beliefs*. Pompano Beach, Florida: Twitty and Twitty, Inc., 1971.

Swanton, John R. *Indian Tribes of the Lower Mississippi Valley and the Adjacent Coast of the Gulf of Mexico*. Washington, D.C.: Smithsonian Institute, Bureau of American Ethnography, Bulletin 43, 1911; Reprinted 1970, Johnson Reprint Corp.

Taylor, Gertrude. "Early History of the Chitimacha," *Attakapas Gazette*, vol. XVI, no. 2 (Summer 1981), pp. 65-69.

Transcriber's Notes

- Silently corrected a few typos.
- Retained publication information from the printed edition: this eBook is public-domain in the country of publication.
- In the text versions only, text in italics is delimited by _underscores_.

*** END OF THE PROJECT GUTENBERG EBOOK CHITIMACHA
NOTEBOOK: WRITINGS OF EMILE STOUFF—A CHITIMACHA
CHIEF ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.